

ASSET PURCHASE AGREEMENT

This Asset Purchase Agreement (this "Agreement") is entered into as of March 15, 2024 (the "Effective Date"), by and between:

TechCorp Acquisitions LLC, a Delaware limited liability company ("Buyer"), with its principal place of business at 500 Innovation Drive, San Francisco, CA 94105

and

DataSystems Inc., a Delaware corporation ("Seller"), with its principal place of business at 1200 Data Center Boulevard, Austin, TX 78701

RECITALS

WHEREAS, Seller is engaged in the business of providing enterprise data management and analytics software solutions (the "Business");

WHEREAS, Buyer desires to purchase substantially all of the assets used in connection with the Business, and Seller desires to sell such assets to Buyer, upon the terms and subject to the conditions set forth in this Agreement;

NOW, THEREFORE, in consideration of the mutual covenants and agreements hereinafter set forth and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

ARTICLE I: DEFINITIONS AND INTERPRETATION

1.1 Definitions. For purposes of this Agreement, the following terms shall have the meanings set forth below:

"Acquired Assets" means all of Seller's right, title, and interest in and to the assets described in Section 2.1.

"Assumed Liabilities" means the liabilities and obligations of Seller that are expressly assumed by Buyer pursuant to Section 2.3.

"Business Day" means any day other than Saturday, Sunday, or any day on which banks in New York, New York are authorized or required by law to close.

"Closing" means the closing of the transactions contemplated by this Agreement.

"Closing Date" means April 30, 2024, or such other date as the parties may mutually agree in writing.

"Encumbrance" means any lien, pledge, mortgage, deed of trust, security interest, claim, lease, charge, option, right of first refusal, easement, servitude, transfer restriction, or other encumbrance.

"Intellectual Property" means all patents, trademarks, service marks, trade names, copyrights, trade secrets, know-how, proprietary processes, formulae, algorithms, and other intellectual property rights.

"Material Adverse Effect" means any event, occurrence, fact, condition, or change that is materially adverse to the business, results of operations, financial condition, or assets of the Business.

"Purchase Price" has the meaning set forth in Section 3.1.

1.2 Interpretation. The headings contained in this Agreement are for reference purposes only and shall not affect the meaning or interpretation of this Agreement. References to "Article" or "Section" refer to articles and sections of this Agreement unless otherwise specified.

ARTICLE II: PURCHASE AND SALE OF ASSETS

2.1 Purchase and Sale of Assets. Subject to the terms and conditions of this Agreement, at the Closing, Seller shall sell, convey, transfer, assign, and deliver to Buyer, and Buyer shall purchase and acquire from Seller, free and clear of all Encumbrances, all of Seller's right, title, and interest in and to the following assets (collectively, the "Acquired Assets"):

- (a) All tangible personal property and equipment used in the Business, including computers, servers, office furniture, and fixtures, as set forth on Schedule 2.1(a);
- (b) All Intellectual Property owned by Seller and used in the Business, including the patents, trademarks, and copyrights listed on Schedule 2.1(b), and the proprietary software products "DataCore Analytics Platform" and "DataVision Enterprise Suite";
- (c) All customer contracts, vendor agreements, and other contracts listed on Schedule 2.1(c) (the "Assigned Contracts");
- (d) All customer lists, supplier lists, referral sources, and other business records related to the Business;
- (e) All accounts receivable of the Business outstanding as of the Closing Date;
- (f) All goodwill associated with the Business and the Acquired Assets; and

(g) All of Seller's rights under warranties, indemnities, and all similar rights against third parties related to the Acquired Assets.

2.2 Excluded Assets. Notwithstanding Section 2.1, the Acquired Assets shall not include the following assets of Seller (collectively, the "Excluded Assets"):

- (a) All cash and cash equivalents of Seller;
- (b) All equity interests owned by Seller in any person or entity;
- (c) Personnel records and other records that Seller is required by law to retain; and
- (d) All rights of Seller under this Agreement.

2.3 Assumed Liabilities. Subject to the terms and conditions of this Agreement, at the Closing, Buyer shall assume only the following liabilities and obligations of Seller (collectively, the "Assumed Liabilities"):

- (a) All liabilities and obligations under the Assigned Contracts arising after the Closing Date; and
- (b) All accounts payable of the Business reflected on the Closing Balance Sheet (as defined below) or arising in the ordinary course of business after the date of the Closing Balance Sheet.

2.4 Excluded Liabilities. Buyer shall not assume or have any responsibility for any liabilities or obligations of Seller other than the Assumed Liabilities (all such other liabilities and obligations being referred to as the "Excluded Liabilities").

ARTICLE III: PURCHASE PRICE AND PAYMENT

3.1 Purchase Price. The aggregate purchase price for the Acquired Assets shall be Twenty-Seven Million Five Hundred Thousand Dollars (\$27,500,000) (the "Purchase Price"), subject to adjustment as provided in Section 3.2.

3.2 Purchase Price Adjustment. The Purchase Price shall be adjusted as follows:

- (a) The Purchase Price shall be increased on a dollar-for-dollar basis by the amount, if any, by which the Net Working Capital (as defined below) as of the Closing Date exceeds \$3,200,000; and
- (b) The Purchase Price shall be decreased on a dollar-for-dollar basis by the amount, if any, by which \$3,200,000 exceeds the Net Working Capital as of the Closing Date.

"Net Working Capital" means the current assets of the Business minus the current liabilities of the Business, calculated in accordance with GAAP applied consistently with past practice.

3.3 Payment of Purchase Price. The Purchase Price, as adjusted pursuant to Section 3.2, shall be paid as follows:

(a) At Closing, Buyer shall pay to Seller Twenty-Five Million Dollars (\$25,000,000) in cash by wire transfer of immediately available funds (the "Closing Payment");

(b) Two Million Dollars (\$2,000,000) shall be deposited into an escrow account (the "Escrow Amount") to be held pursuant to an escrow agreement in the form attached as Exhibit A (the "Escrow Agreement") for a period of eighteen (18) months following the Closing Date to secure Seller's indemnification obligations under Article VII; and

(c) Five Hundred Thousand Dollars (\$500,000) shall be held back for post-Closing working capital adjustments and paid pursuant to Section 3.4.

3.4 Post-Closing Adjustment. Within sixty (60) days after the Closing Date, Buyer shall prepare and deliver to Seller a balance sheet as of the Closing Date (the "Closing Balance Sheet") and a calculation of the final Purchase Price adjustment. If Seller disputes the Closing Balance Sheet, the parties shall work in good faith to resolve the dispute, and if unable to resolve within thirty (30) days, the dispute shall be submitted to an independent accounting firm mutually acceptable to both parties.

ARTICLE IV: REPRESENTATIONS AND WARRANTIES

4.1 Representations and Warranties of Seller. Seller represents and warrants to Buyer as follows:

(a) Organization and Good Standing. Seller is a corporation duly organized, validly existing, and in good standing under the laws of the State of Delaware and has all requisite corporate power and authority to own and operate the Acquired Assets and to carry on the Business as currently conducted.

(b) Authority and Enforceability. Seller has full corporate power and authority to execute and deliver this Agreement and to consummate the transactions contemplated hereby. This Agreement has been duly authorized, executed, and delivered by Seller and constitutes the legal, valid, and binding obligation of Seller, enforceable against Seller in accordance with its terms.

(c) No Conflicts. The execution, delivery, and performance of this Agreement by Seller does not and will not (i) conflict with or violate any provision of Seller's certificate of incorporation or bylaws, (ii) conflict with or violate any law applicable to Seller or the

Business, or (iii) result in any breach of or constitute a default under any material contract to which Seller is a party.

(d) Financial Statements. Seller has delivered to Buyer true and complete copies of the audited financial statements for the Business for the fiscal years ended December 31, 2022 and December 31, 2023, and unaudited financial statements for the three months ended March 31, 2024. Such financial statements have been prepared in accordance with GAAP and fairly present in all material respects the financial condition and results of operations of the Business as of the dates and for the periods indicated.

(e) Intellectual Property. Seller owns or has the right to use all Intellectual Property necessary to conduct the Business as currently conducted. Schedule 4.1(e) sets forth a complete list of all registered Intellectual Property owned by Seller. The Intellectual Property owned by Seller is free and clear of all Encumbrances, and to Seller's knowledge, does not infringe upon the intellectual property rights of any third party.

(f) Material Contracts. Schedule 4.1(f) contains a complete and accurate list of all material contracts related to the Business. Each such contract is valid and binding on Seller and, to Seller's knowledge, each other party thereto, and is in full force and effect. Seller is not in material breach of any such contract.

(g) Litigation. There is no action, suit, proceeding, claim, arbitration, or investigation pending or, to Seller's knowledge, threatened against Seller relating to the Business or the Acquired Assets, nor is there any judgment, decree, injunction, or order of any court or governmental authority outstanding against Seller relating to the Business.

(h) Compliance with Laws. The Business has been and is being conducted in compliance in all material respects with all applicable federal, state, local, and foreign laws, regulations, and ordinances.

4.2 Representations and Warranties of Buyer. Buyer represents and warrants to Seller as follows:

(a) Organization and Good Standing. Buyer is a limited liability company duly organized, validly existing, and in good standing under the laws of the State of Delaware.

(b) Authority and Enforceability. Buyer has full limited liability company power and authority to execute and deliver this Agreement and to consummate the transactions contemplated hereby. This Agreement has been duly authorized, executed, and delivered by Buyer and constitutes the legal, valid, and binding obligation of Buyer.

(c) Financial Capacity. Buyer has, and at the Closing will have, sufficient cash, available lines of credit, or other sources of immediately available funds to enable it to pay the Purchase Price and consummate the transactions contemplated by this Agreement.

ARTICLE V: COVENANTS

5.1 Conduct of Business Prior to Closing. From the date of this Agreement until the Closing Date, Seller shall:

- (a) Conduct the Business in the ordinary course consistent with past practice;
- (b) Use commercially reasonable efforts to preserve intact the Business organization and relationships with customers, suppliers, and others having business dealings with the Business;
- (c) Maintain all permits, licenses, and authorizations necessary for the conduct of the Business;
- (d) Not sell, transfer, or otherwise dispose of any Acquired Assets except in the ordinary course of business;
- (e) Not enter into any contract that would constitute a material contract without Buyer's prior written consent; and
- (f) Maintain insurance coverage for the Acquired Assets at levels consistent with past practice.

5.2 Non-Competition and Non-Solicitation. For a period of three (3) years following the Closing Date, Seller shall not, directly or indirectly:

- (a) Engage in, or have any ownership interest in, any business that competes with the Business within the United States;
- (b) Solicit or attempt to solicit any customer of the Business to do business with any competitor of Buyer; or
- (c) Solicit for employment or hire any employee of Buyer who was an employee of Seller at the time of Closing.

5.3 Confidentiality. Seller acknowledges that the Acquired Assets include confidential and proprietary information. Seller agrees to hold all such information in strict confidence and not to disclose or use such information except as required by law or with Buyer's prior written consent.

5.4 Further Assurances. From time to time after the Closing, at Buyer's request and without further consideration, Seller shall execute and deliver such other instruments of

conveyance and transfer and take such other actions as Buyer may reasonably request to more effectively convey and transfer to Buyer the Acquired Assets.

ARTICLE VI: CONDITIONS TO CLOSING

6.1 Conditions to Buyer's Obligations. The obligation of Buyer to consummate the transactions contemplated by this Agreement is subject to the satisfaction or waiver by Buyer, at or prior to the Closing, of the following conditions:

- (a) The representations and warranties of Seller contained in this Agreement shall be true and correct in all material respects as of the Closing Date;
- (b) Seller shall have performed and complied in all material respects with all covenants and agreements required by this Agreement to be performed or complied with by Seller at or prior to the Closing;
- (c) No action, suit, or proceeding shall be pending or threatened before any court or governmental authority seeking to restrain, prohibit, or obtain damages with respect to this Agreement or the consummation of the transactions contemplated hereby;
- (d) All consents, approvals, and authorizations required for the consummation of the transactions contemplated hereby shall have been obtained; and
- (e) Seller shall have delivered to Buyer a certificate, dated the Closing Date and signed by an authorized officer of Seller, certifying the satisfaction of the conditions set forth in subsections (a) and (b) above.

6.2 Conditions to Seller's Obligations. The obligation of Seller to consummate the transactions contemplated by this Agreement is subject to the satisfaction or waiver by Seller, at or prior to the Closing, of the following conditions:

- (a) The representations and warranties of Buyer contained in this Agreement shall be true and correct in all material respects as of the Closing Date;
- (b) Buyer shall have performed and complied in all material respects with all covenants and agreements required by this Agreement to be performed or complied with by Buyer at or prior to the Closing; and
- (c) Buyer shall have delivered to Seller the Closing Payment in accordance with Section 3.3(a).

ARTICLE VII: INDEMNIFICATION

7.1 Indemnification by Seller. Subject to the limitations set forth in this Article VII, Seller shall indemnify, defend, and hold harmless Buyer and its affiliates, officers, directors, employees, and agents (collectively, the "Buyer Indemnified Parties") from and against any and all losses, damages, liabilities, costs, and expenses (including reasonable attorneys' fees) (collectively, "Losses") arising out of or resulting from:

- (a) Any breach of any representation or warranty made by Seller in this Agreement;
- (b) Any breach of any covenant or agreement of Seller contained in this Agreement; and
- (c) Any Excluded Liability.

7.2 Indemnification by Buyer. Subject to the limitations set forth in this Article VII, Buyer shall indemnify, defend, and hold harmless Seller and its affiliates, officers, directors, employees, and agents (collectively, the "Seller Indemnified Parties") from and against any and all Losses arising out of or resulting from:

- (a) Any breach of any representation or warranty made by Buyer in this Agreement;
- (b) Any breach of any covenant or agreement of Buyer contained in this Agreement; and
- (c) Any Assumed Liability.

7.3 Limitations on Indemnification. The indemnification obligations under this Article VII shall be subject to the following limitations:

- (a) Basket. No claim for indemnification under Section 7.1(a) or 7.2(a) shall be made unless and until the aggregate amount of all Losses exceeds Two Hundred Fifty Thousand Dollars (\$250,000) (the "Basket"), after which the indemnifying party shall be liable for all Losses from the first dollar.
- (b) Cap. The maximum aggregate liability of Seller under Section 7.1(a) shall not exceed the Escrow Amount of Two Million Dollars (\$2,000,000), except for claims arising from fraud or willful misconduct, which shall not be subject to such limitation.
- (c) Time Limitations. Claims for indemnification under Section 7.1(a) must be asserted prior to the eighteen (18) month anniversary of the Closing Date, except for claims relating to taxes or breaches of the fundamental representations (organization, authority, title to assets), which may be asserted at any time prior to the expiration of the applicable statute of limitations.

7.4 Indemnification Procedures. A party seeking indemnification (an "Indemnified Party") shall give prompt written notice to the party from whom indemnification is sought (an "Indemnifying Party") of any claim or the commencement of any action, suit, or proceeding

by a third party in respect of which indemnification may be sought. The Indemnifying Party shall have the right to assume control of the defense of any such third-party claim, provided that the Indemnified Party may participate in such defense at its own expense.

ARTICLE VIII: MISCELLANEOUS

8.1 Expenses. Except as otherwise expressly provided in this Agreement, each party shall bear its own expenses incurred in connection with the preparation, execution, and performance of this Agreement and the transactions contemplated hereby, including all fees and expenses of agents, representatives, counsel, and accountants.

8.2 Notices. All notices, requests, demands, and other communications under this Agreement shall be in writing and shall be deemed to have been duly given if delivered personally, sent by overnight courier, or sent by registered or certified mail (postage prepaid, return receipt requested) to the parties at their respective addresses set forth above.

8.3 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflicts of law principles.

8.4 Dispute Resolution. Any dispute arising out of or relating to this Agreement shall be resolved through binding arbitration in accordance with the Commercial Arbitration Rules of the American Arbitration Association. The arbitration shall be conducted in New York, New York, and judgment upon the award rendered by the arbitrator may be entered in any court having jurisdiction.

8.5 Entire Agreement. This Agreement, together with the schedules, exhibits, and other documents referred to herein, constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior agreements, understandings, negotiations, and discussions, whether oral or written, between the parties.

8.6 Amendment and Waiver. This Agreement may be amended, modified, or supplemented only by a written agreement executed by both parties. No waiver of any provision of this Agreement shall be effective unless in writing and signed by the party against whom such waiver is sought to be enforced.

8.7 Assignment. Neither party may assign this Agreement or any of its rights or obligations hereunder without the prior written consent of the other party, except that Buyer may assign this Agreement to any affiliate or to any entity that acquires all or substantially all of Buyer's assets.

8.8 Counterparts. This Agreement may be executed in one or more counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same instrument.

8.9 Severability. If any provision of this Agreement is held to be invalid, illegal, or unenforceable, the validity, legality, and enforceability of the remaining provisions shall not be affected or impaired.

8.10 Third-Party Beneficiaries. Except as expressly provided in Article VII with respect to indemnified parties, nothing in this Agreement is intended to confer any rights or remedies on any persons other than the parties to this Agreement.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first written above.

TECHCORP ACQUISITIONS LLC

By: _____

Name: Jennifer Martinez

Title: Chief Executive Officer

DATASYSTEMS INC.

By: _____

Name: Robert Chen

Title: Chief Executive Officer